

**CHAPTER ccxxi.**

An Act for the abandonment of a portion of the undertaking authorised by the Saddleworth and Springhead Tramways Act 1902 and for other purposes.

A.D. 1904.
—

[15th August 1904.]

WHEREAS the Saddleworth and Springhead Tramways Company (in this Act referred to as "the Company") were authorised by the Saddleworth and Springhead Tramways Act 1902 (in this Act referred to as "the Act of 1902") to construct certain tramways in the urban districts of Saddleworth and Springhead in the west riding of the county of York and in the rural district of Limehurst in the county of Lancaster:

And whereas it is expedient that the Company be authorised to abandon the construction of the Tramways Nos. 3 and 4 authorised by the Act of 1902:

And whereas the tramways originally proposed to be authorised by the Bill for the Act of 1902 included certain tramways on the deposited plans and sections called Tramways Nos. 6 and 8 the powers for constructing which were struck out of the Bill for the said Act during its progress through Parliament:

And whereas the estimate for the said Tramways Nos. 6 and 8 and for the said Tramways Nos. 3 and 4 authorised by this Act to be abandoned amounted to the sum of £54,526 10s. and of the sum of £6,069 0s. 5d. 2½ per centum consolidated stock which now represents the deposit fund mentioned in section 73 of the Act of 1902 stock to the amount of £2,884 was equal at the price at which the same was purchased to 5 per centum upon the said sum of £54,526 10s. and it is expedient that provision be made for the return to the depositors mentioned in the said section 73 of

A.D. 1904. the said sum of £2,884 2½ per centum consolidated stock and the interest and dividends thereon :

And whereas the abandonment of the said Tramways Nos. 3 and 4 will render unnecessary the expenditure of a considerable portion of the capital authorised by the Act of 1902 and it is expedient that such capital be reduced and that the Company be authorised to raise a portion of the reduced capital as preference capital :

And whereas by section 82 of the Act of 1902 the Company were authorised to make application for a Provisional Order under the provisions of the Electric Lighting Acts 1882 and 1888 to supply electrical energy for public and private purposes within any district in which the tramways were situate or to take a transfer of any Provisional Order granted for the like purpose in respect of any such district and to supply electrical energy thereunder and to apply their funds for such purposes :

And whereas by the Saddleworth Electric Lighting Order 1902 (confirmed by the Electric Lighting Provisional Orders (No. 3) Act 1902) and by the Springhead Electric Lighting Order 1902 (also confirmed by the said Electric Lighting Provisional Orders (No. 3) Act 1902) the Saddleworth and Springhead Urban District Councils (in this Act referred to as "the councils") were respectively authorised to supply electrical energy throughout their respective districts and it was provided by section 8 of each of the said Orders that at any time within one year after the commencement of the said Orders the councils might with the consent of the Board of Trade transfer the undertakings authorised by the said Orders to the Company :

And whereas it is expedient that the periods respectively limited as aforesaid for the transfer by the councils with the consent of the Board of Trade to the Company of the undertakings respectively authorised by the said Electric Lighting Orders should be extended :

And whereas it is expedient that the name of the Company should be changed as hereinafter provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1904.
authority of the same as follows :—

1. This Act may be cited as the Saddleworth and Springhead Short title.
Tramways Act 1904.

2. The Company may and shall abandon the construction of Abandonment
Tramways Nos. 3 and 4 authorised by the Act of 1902. of portion of
undertaking.

3. The abandonment by the Company under the authority Compensation
of this Act of the said tramways shall not prejudice or affect the for dam-
right of the owner or occupier of any land to receive compensation age to land
for any damage occasioned by the entry of the Company on such by entry &c.
land for the purpose of surveying and taking levels or probing or for purposes
boring to ascertain the nature of the soil or setting out of the lines of tramways
of tramways and shall not prejudice or affect the right of the owner abandoned.
or occupier of any land which has been temporarily occupied by the
Company to receive compensation for such temporary occupation
or for any loss damage or injury which has been sustained by such
owner or occupier by reason thereof or of the exercise as regards
such land of any of the powers contained in the Act of 1902.

4. Where before the passing of this Act any contract has been Compensation
entered into or notice given by the Company for the purchasing of to be
any land for the purposes of or in relation to the tramways autho- made in
rised to be abandoned by this Act the Company shall be released respect of
from all liability to purchase or to complete the purchase of any tramways
such lands but notwithstanding full compensation shall be made abandoned.
by the Company to the owners and occupiers or other persons
interested in such lands for all injury or damage sustained by
them respectively by reason of the purchase not being completed
pursuant to the contract or notice and the amount and application
of the compensation shall be determined in manner provided by
the Lands Clauses Consolidation Act 1845 as amended by any
subsequent Act for determining the amount and application of
compensation paid for lands taken under the provisions thereof.

5. Subject to the provisions of this Act and of section 74 of Provision for
the Act of 1902 with respect to compensation to landowners or repayment
other persons injured and to road authorities and for the protection of portion of
of creditors as therein provided the High Court at any time after deposit
the passing of this Act on application by or on behalf of the moneys.
depositors referred to in section 73 of the Act of 1902 may and
shall order that the sum of two thousand eight hundred and eighty-

A.D. 1904. — four pounds two and one half per centum consolidated stock part of the sum of six thousand and sixty-nine pounds and fivepence two and one half per centum consolidated stock which now represents the deposit fund mentioned in the said last-mentioned section and the interest or dividends (if any) thereon may be delivered transferred and paid to the person or persons so applying or to any other person or persons whom they or he may appoint in that behalf and on such order being made the said stock certificates and stock and the interest or dividends thereon shall be delivered transferred and paid to such person or persons accordingly.

Reducing
share and
loan capital of
Company.

6. Section 58 (Capital) of the Act of 1902 shall be read and have effect as if the words "one hundred and thirty-five thousand pounds in twenty-seven thousand shares" had been inserted therein instead of the words "one hundred and fifty thousand pounds in thirty thousand shares" and section 61 of the said Act (Power to borrow) shall be read and have effect as if the words "nine thousand pounds" had been inserted therein instead of the words "twenty-five thousand pounds" and the words "twenty-seven thousand pounds" instead of the words "seventy-five thousand pounds."

Preference
shares.

7. The Company may issue any portion not exceeding sixty-seven thousand five hundred pounds of the reduced capital of one hundred and thirty-five thousand pounds as preference shares with any dividend or interest not exceeding the rate of six per centum per annum and with such rights to priority in the distribution of assets and so that if the profits in any one year are not sufficient to pay such dividend or interest the deficiency may be made good out of the profits of any subsequent year or otherwise as they may think fit The provisions of sections 13 and 15 of the Companies Clauses Act 1863 shall be applicable to the issue of such preference shares and to the Company in the same way as they apply to the issue of new preference shares Provided that the amount of capital issued as preference shares under the provisions of this section shall not at any time exceed the amount of capital issued as ordinary shares.

Power to
apply funds.

8. The Company may apply to any of the purposes of this Act to which capital is properly applicable any moneys which they are by the Act of 1902 as amended by this Act authorised to raise by shares or borrowing.

9. From and after the passing of this Act the name of the Company shall be "The Oldham and Saddleworth District Tramways Company" and the Company shall have a common seal and the provisions of Part IV. (Change of name) of the Companies Clauses Act 1863 shall apply accordingly.

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Change of
name of
Company.

10. The period limited by section 8 of the Saddleworth Electric Lighting Order 1902 (confirmed by the Electric Lighting Provisional Orders (No. 3) Act 1902) and the period limited by section 8 of the Springhead Electric Lighting Order 1902 (also confirmed by the Electric Lighting Provisional Orders (No. 3) Act 1902) within which the councils may with the consent of the Board of Trade transfer the undertakings respectively authorised by the Saddleworth Electric Lighting Order and the Springhead Electric Lighting Order to the Company are hereby extended until the 31st day of December 1905.

Extending
time for
transfer of
Saddleworth
and Spring-
head Electric
Lighting
Orders to
Company.

11. All costs charges and expenses of and incident to applying for and obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Expenses of
Act.

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